



Appeal Decision

Site visit made on 10 August 2026

by A Wright BSc (Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 27 August 2026

Appeal Ref: 6010382

Grassed verge at Kings Way, north of 1 Burdocks Drive, Burgess Hill, West Sussex

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant approval required under Article 3(1) and Schedule 2, Part 16, Class A of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended).
 - The appeal is made by Cornerstone against the decision of Mid Sussex District Council.
 - The application Ref is DM/26/0328.
 - The development proposed comprises the installation of a 17.5m monopole supporting 6 no. antennas, 2 no. 300mm transmission dishes, 3 no. equipment cabinets and ancillary development thereto including 3 no. remote radio heads.
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Decision

1. The appeal is allowed, and prior approval is granted under the provisions of Article 3(1) and Schedule 2, Part 16, Class A of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) (the GPDO) for the installation of a 17.5m monopole supporting 6 no. antennas, 2 no. 300mm transmission dishes, 3 no. equipment cabinets and ancillary development thereto including 3 no. remote radio heads at Grassed verge at Kings Way, north of 1 Burdocks Drive, Burgess Hill, West Sussex in accordance with the application ref DM/26/0328 and the plans submitted with it including 100 Rev B, 201 Rev B and 301 Rev B.

Preliminary Matters

2. The address of the appeal site given on the application and appeal forms is 'Kings Way, Burgess Hill, West Sussex RH15 0EA', though the latter also refers to a grassed verge. The Council cites the address as 'Land north of 1 Burdocks Drive, Burgess Hill, West Sussex RH15 0HJ'. I have used a combination of these in the banner above to provide a precise and accurate description of the address.
3. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. As this could affect the issues and matters in this case, the Council and the appellant were invited to make further comments. My decision reflects the latest version of the Framework, and the responses received on it.

Procedural Matters

4. Article 3(1) and Schedule 2, Part 16, Class A of the GPDO require the local planning authority to assess the proposed development solely on the basis of its siting and appearance, taking into account any representations received. My determination of this appeal has been made on the same basis.

5. The principle of development is established by the GPDO and the provisions of Schedule 2, Part 16, Class A of the GPDO do not require regard to be had to the development plan. I have had regard to the policies of the Mid Sussex District Plan 2014 – 2031 adopted 2018 (DP) only in so far as they are a material consideration relevant to matters of siting and appearance.

Main Issue

6. The main issues in this appeal are:
 - the effect of the siting and appearance of the proposed installation on the character and appearance of the area; and
 - if any harm would occur, whether this is outweighed by the need for the installation to be sited as proposed taking into account any suitable alternatives.

Reasons

Character and appearance

7. The appeal site comprises part of a grass verge on the eastern side of Kings Way, to the north of Burdocks Drive. It lies in a suburban residential area comprising mainly two storey dwellings. There are grassed verges on both sides of the road and some street trees, giving this part of Kings Way a pleasant green and open character. Street furniture mainly consists of lighting columns which provide vertical features at regular intervals along the road. The three trees close to the site are around 8m high. The site is not within and does not affect the setting of any heritage or environmental designations.
8. The 17.5m high slimline monopole would be below the 25m allowed by permitted development rights, but this is subject to the GPDO condition requiring prior approval for siting and appearance. The appellant states that the proposed monopole is the lowest possible height and diameter for providing a mobile signal across the target area and to comply with the International Commission on Non-Ionizing Radiation Protection (ICNIRP) public exposure guidelines.
9. The height and form of the proposed installation would have less visual impact than the lattice mast and monopole mast options for delivering 4G and 5G technology. Nonetheless, the proposed structure would be considerably higher and have a substantially thicker profile, particularly where it would accommodate antennas and transmission dishes at its upper levels, compared to the existing streetlights.
10. The grey coloured pole is intended to match the lighting columns and blend in with the often-grey sky. However, its location on a flat, wide area of verge beside the road means that it would be positioned in a highly visible, open location. It would protrude significantly above the existing tree canopies and dwellings in the locality. Due to its height and location, the monopole and associated equipment would be particularly dominant and incongruous in views along Kings Way and from nearby houses where the top part of the installation would be seen against the skyline.
11. For these reasons, the proposed monopole and associated equipment would be in stark contrast to the character and appearance of the surrounding area. It would be visually prominent in near and longer distance views along the road and from

dwellings close by, and in those views would appear as an unusual and discordant feature. Consequently, it would have an adverse visual effect.

12. The proposed ground-based cabinets would be utilitarian in their appearance. However, given their relatively low height and green colour set against a backdrop of trees and nearby boundary walls, they would not harm the established character of the immediate area nor be discordant in longer distance views from the road.
13. Consequently, I conclude that the siting and appearance of the proposed installation would harm the character and appearance of the area. In so far as it is a material consideration, the proposal would be contrary to Policy DP23 of the DP which amongst other things requires new telecommunications equipment to minimise impact on the character or appearance of the surrounding area.

Suitable alternatives

14. The Framework recognises that advanced, high quality and reliable communications are essential to meeting changing technological, social, business and security requirements. In considering proposals for the expansion of electronic telecommunications networks, Policy CO1 of the Framework states that substantial weight should be given to the benefits of improving network coverage, capacity, reliability and resilience.
15. Amongst other things, this policy outlines that such proposals should use existing masts, buildings and other structures already employed for this purpose unless there is no reasonable opportunity to do so. Where a new site is proposed, Policy CO2 of the Framework requires evidence that the number of these is kept to a minimum, including evidence that the possibility of erecting any antennas on an existing building, mast or other structure have been explored.
16. The proposal is required to provide improved 4G and new 5G coverage and capacity for the Virgin Media O2 network in this part of Burgess Hill. There are no opportunities for mast sharing within the search area, and the suitability of 22 alternative sites to accommodate a new mast in the area were originally assessed. Three rooftop locations were discounted for practical and technical reasons. The remaining sites were ruled out for various reasons including insufficient pavement space, their proximity to residential properties, the sites being earmarked for redevelopment, their planning history and their failure to fulfil the coverage and capacity issues of the target area as a whole.
17. In its Planning Officer's Report, the Council considered that the site selection assessment did not demonstrate that all reasonable alternative locations had been explored. It cited potential locations at the Basketball Court on Sycamore Drive and the field north of Kings Way which the appellant subsequently assessed.
18. The Basketball Court site is landlocked by houses, surrounded by tall mature trees subject to a Tree Preservation Order and close to a railway line. As such, there is no access for build and maintenance purposes, and a new vehicular access would be required. Further, as the underside of the antennas need to be clear of the tree line to work, it would be necessary to apply to lop the protected trees when they grow above the antennas. In addition, a monopole cannot be positioned within 50m of a live railway line as the line would need to be closed for any mast installation and maintenance works, adversely affecting users of the railway network. Therefore, this is not a realistic or practical option.

19. The field north of Kings Way has planning permission for a residential care facility, car parking, private amenity space and landscaping. As such, this location was discounted as it is not available, nor would the approved layout or buildings present a viable opportunity to site a telecommunications installation.
20. It is evident that the number of sites considered within this predominantly residential search area is extensive. The appellant has been seeking to provide coverage to this area of Burgess Hill since 2016 and three previous applications have been refused since then, including one dismissed on appeal. This helps to demonstrate the extent to which other sites have been considered and pursued in this area. In its appeal statement, the Council acknowledges that the appeal site represents the only realistic option within the defined search area. Based on the evidence before me, I agree.
21. The proposal would harm the character and appearance of the area through the siting and design of the proposed mast. Nonetheless, the proposal would have significant benefits in providing improved 4G and new 5G coverage in the area, as supported by the Framework. Along with the lack of any suitable alternative sites in the search area, this outweighs the harm that I have identified.

Other Matters

22. Concerns have been raised about the potential effects of the proposal on health. However, the appellant has provided a certificate declaring that the proposal conforms with the ICNIRP public exposure guidelines. Having regard to the Framework, and that the application is for prior approval where only siting and appearance are for consideration, the potential effect on health is not a determining issue in this case.
23. There are also concerns about potential impacts on electronic systems. All operators of radio transmitters are required to operate them in accordance with the conditions of their licence which fulfil their legal obligations in respect of interference with other radio systems and electrical equipment.
24. Interested parties also express concerns about pedestrian access to the neighbouring pavement and the proximity of the proposed scheme to roads and a pedestrian crossing point. As the proposal would be within an existing grassed area and not within the footway, the Highways Authority (HA) does not consider that it would cause an obstruction to pedestrians. Further, the HA anticipates that the proposed siting would not obstruct visibility for vehicles travelling along Kings Way or exiting Burdock Drive, nor cause any other highway safety concerns.
25. The only noise emitted from the proposed installation is from a cooling fan within the equipment cabinets which only operate during hot weather conditions. This is inaudible within a few metres, particularly when considering the ambient noise levels in the area which include passing traffic.
26. There are comments about the potential flood risk to the proposed equipment, but the site is not within an area identified at risk from flooding.
27. Concerns are raised about the energy consumption associated with the proposed installation. However, under the prior approval process, assessment is confined to siting and appearance, and the sustainability of the technology cannot be considered in determining the appeal.

28. Interested parties also raise concerns about impacts on wildlife, but there is no substantive evidence that telecommunications equipment presents an ecological risk or that the scheme would harm local species or habitats.
29. Some parties also raise the issues of extreme weather events and the proximity to the electricity substation. The safe and proper construction of telecommunications infrastructure is dealt with under a separate regulatory regime and is not a planning matter relevant to my determination of the appeal. Similarly, the concerns around land ownership and effects on property values are not planning matters.
30. There are concerns about the consultation process, but the Council posted a site notice and notified neighbouring occupiers by letter, and there is no compelling evidence that the statutory consultation was not carried out as required.

Conditions

31. Any planning permission granted for development under Article 3(1) and Schedule 2, Part 16, Class A is subject to conditions set out in Paragraphs A.3(9), A.3(11) and A.2(2). These specify that the development must, except to the extent that the local planning authority otherwise agree in writing, be carried out in accordance with the details submitted with the application and must begin within 5 years of the date of the approval. Also, it must be removed as soon as reasonably practicable after it is no longer required for electronic communications purposes and the land restored to its condition before the development took place.
32. The Council suggests imposing additional planning conditions should approval be granted. However, the GPDO does not provide any specific authority for imposing additional conditions beyond the deemed conditions referred to above.

Conclusion

33. For the reasons given above, I conclude that the appeal should be allowed and prior approval should be granted.

A Wright

INSPECTOR